



**GREATER
ROCHESTER**
Chamber of Commerce

**BACKGROUND & REFERENCE CHECKING
EMPLOYEE RELEASE OF CLAIMS**

I understand that the information and opinions concerning me disclosed to RBA Staffing (RBA), and from RBA to **Johnstone Supply of CNY** may include both favorable and unfavorable material. I knowingly and voluntarily release each of my current and former educators and employers, RBA, and their respective agents and employees, and all other individuals and entities providing information, from any and all claims and liabilities, including but not limited to claims for defamation, retaliation, discrimination, damages, costs and attorney's fees, which have arisen or may arise in the future related to the information and opinions provided to RBA and from RBA to **Johnstone Supply of CNY**.

I understand that my execution of this Release is a condition of my being considered for employment by **Johnstone Supply of CNY**. My execution of this Release is for the benefit of **Johnstone Supply of CNY**, my current and former educators and employers, and RBA, and to assure that they are free to disclose information and opinions about me.

I intend that a copy of this Release be as valid as the original.

Marco Ribino
Applicant Name PRINTED

Marco Ribino
Applicant Signature

062-70-1566
Social Security Number

10/29/19
Date

Job Description- Territory Sales Manager

Diplomacy

Technical Skills

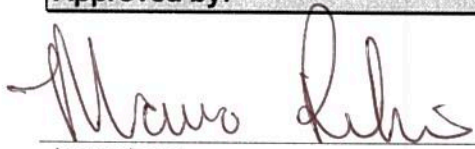
Math Aptitude

Ability to lift up to 70 pounds

Mechanical Skills

The Territory Sales Manager will maintain the strictest confidentiality on all corporate matters including, but not limited to: marketing strategies, operational structures, pricing and all subjects that may have an adverse effect on the company in the marketplace if they were made known outside the company.

Approved by:

 10/29/19

Incumbent

Date

Supervisor

Date



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

October 27, 2019

Mr. Marco Rubino
67 State Route 56
Potsdam, NY 13676

Dear Marco:

I am pleased to offer you the position of Territory Sales Manager for Johnstone Supply of Central NY. This letter is to confirm my offer and your acceptance of the position. You will be reporting directly to me as your Regional Sales Manager. Your compensation package includes three components: salary, commission/bonus, and a benefit program. This position will pay biweekly at the rate of \$60,000/year. Additionally, over the next 15 months, we will guarantee an additional \$50,000 (\$3,333.33/month) in salary draw. Over the next 3-4 months we will review your performance and will work with you to develop a commission and bonus based upon several factors including gross profit. Subsequently, your commission will be compared to your draw and you will receive the greater of the two.

Since transportation will be an integral part of your job you will be provided with a suitable company vehicle for your use professionally. A gas card will also be provided for business use only.

Lastly, with the successful completion of 90 days of employment you will become eligible for a number of full employment benefits as outlined on the accompanying page.

Subject to a routine motor vehicle and background check your starting package is based upon your indications and statements to me and others in our company that you are fully capable of meeting the requirements and description of the job as has been outlined to you previously. This offer is made on an "at will" basis and should not be construed as a guarantee of employment for any specific duration.

Please indicate your acceptance of our offer by signing below and returning one copy of the letter, with your original signature, to me no later than November 11, 2019. We would appreciate having your decision as soon as possible, but please feel free to talk to me further if you have any questions.

Marco, I am confident that you have the skills, enthusiasm, and talent to be successful in this challenging position. I look forward to having you on my team.

Welcome to JOHNSTONE SUPPLY!
Sincerely,

Darrell Sterling, Regional Sales Manager
Enclosures (5)

Est. start date 11-15-19

By signing below, you are accepting this position and our offer.

Marco Rubino

Date

10/29/19

BENEFITS OVERVIEW- (Continued)

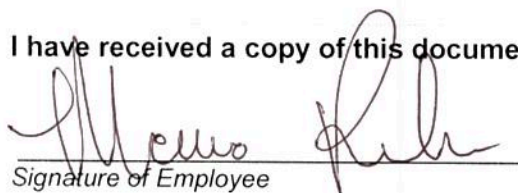
	<u>Employee Contribution</u> <u>Match</u>	<u>Employer</u>	Pre-tax and after-tax (Roth) programs available.
	1%	1%	
	2%	2%	
	3%	3%	
	4%	3.5%	
	5%	4%	

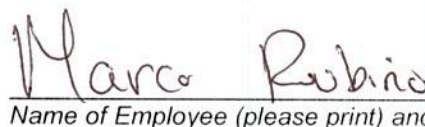
* These benefits do not constitute a contract with the employee and may be subject to change without notice.

† Subject to prior approval. Employee must achieve a minimum grade point average. Actual percentage is at the discretion of management.

NOTE: All Johnstone Supply employees are employed at will.

I have received a copy of this document.


Signature of Employee

 10/29/19
Name of Employee (please print) and date



Applicant Name PRINTED (First Name, MI, Last Name) Marco A Rubino	Social Security Number 062-70-1566	
Other Last Names/Alias/AKAs used in last 7 years	Applicant's Date of Birth 06-04-1985	Date 10/29/19
Driver License Number and State of Issue (if requested) 412 321 782 NY		

Please list all **Addresses** that you have lived in within the last seven (7) years including the current one.

Address	City/State	Years of Residency		Zip Code
1333 Lincoln Ave	Utica NY	From: 2015	To: 2018	13502
6757 State Route 56	Potsdam NY	From: 2017	To: 2019	13676
29 Woodlawn Ave	Clinken NY	From: 2014	To: 2015	13323
		From:	To:	


Applicant Signature